

2014 SCC OnLine All 11387

(BEFORE AMRESHWAR PRATAP SAHI AND VIVEK KUMAR BIRLA, JJ.)

Mohammad Rashid & Another Petitioners

v.

State of U.P. & 3 Others Respondents

Counsel for Petitioner:- Dinesh Sengar

Counsel for Respondent:- C.S.C., Nripendra Mishra

Writ - C No. - 36167 of 2014

Decided on July 16, 2014

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Vivek Kumar Birla, J.

Heard Sri Dinesh Sengar, learned counsel for the petitioners, and Sri Nripendra Mishra for the Electricity Department.

Petitioners have come up before this Court with a prayer that the installation of an excess transformer in the village of the petitioners has resulted in unnecessary overloading and consequential shortage of electricity supply. This is sought to be demonstrated on the strength of the supply chart which has been filed as Annexure 2 to the writ petition. The petitioners are also having electricity connections including a tubewell, which is being operated, and according to the petitioners as a consequence of this additional transformer, being installed, the voltage supply of electricity also stands reduced which results in the tubewell becoming dysfunctional. Thus, the petitioners are being directly affected on account of such installation and a complaint was made to this effect.

It has been alleged in the complaint that this is being done to provide benefit to an individual, namely, one Mr. Tayyab and accordingly an inquiry was set up in which the Superintending Engineer, Technical, Saharanpur has submitted a report to the Chief Engineer of the Saharanpur Range, Saharanpur, bringing to his notice the aforesaid facts.

This was intimated to the Managing Director at Meerut, who called upon the Chief Engineer to submit his report after conducting an inquiry in the matter.

Having considered the submissions raised, since this complaint, made

by the petitioners, requires virtually a technical audit of the complaint and submission of a report by the competent authority, it would be appropriate that the respondent no. 3 proceeds to assess the aforesaid complaint made by the petitioners along with the respondent no. 4 and submit their technical report about the allegations made by the petitioners before the respondent no. 2. The respondent no. 2- Managing Director shall, after going through the same, examine it inasmuch as under the provisions of the Electricity Act and the U.P. Electricity Supply Code. The respondents are under an obligation to maintain requisite supply of electricity and not create any disbalance as alleged by the petitioners. The inquiry shall be concluded and orders will be passed only after putting the affected party, namely, Sri Tayyab to notice by the Managing Director preferably within a period of three months' from the date of production of a certified copy of this order before the said authority.

With the said observation, this petition stands disposed of.

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